

General Terms and Conditions of Purchase of Naue GmbH & Co. KG (hereinafter referred to as: “GTCP”)

Section 1 Application of our GTCP

1. These GTCP apply to all contracts concluded on or after 1 August 2024 for the supply of movable goods (“Goods”) and for the procurement of other services, such as work performance or services (“Services”). Any additional obligations assumed shall not affect the validity of these GTCP.
2. Our GTCP shall apply exclusively; we do not recognise any terms and conditions of the Supplier that conflict with or deviate from our GTCP or from the statutory provisions, unless we have expressly agreed to their application in writing. Our GTCP shall apply even if we accept the Supplier’s delivery/performance without reservation, make our payment without reservation or perform any contractual (ancillary) obligations in the knowledge that the Supplier’s terms and conditions conflict with or deviate from our GTCP.
3. Our GTCP shall only apply if the Supplier is an entrepreneur (Section 14 of the German Civil Code [*Bürgerliches Gesetzbuch* – BGB]), a legal entity under public law or a special fund under public law.
4. References to the application of statutory provisions are for clarification purposes only. Therefore, even without such clarification, the statutory provisions shall apply unless they are directly modified or expressly excluded in these GTCP.
5. In addition to these GTCP, we expect our Suppliers to comply with the contents of our Code of Conduct for Business Partners of Companies of the Naue Group, which can be found at the following link: <https://www.naue.com/de/info-center/downloads/document-center/>. Alternatively, you can request the latest version of the Code of Conduct for Business Partners of Companies of the Naue Group from your contact in our Purchasing Department.

Section 2 Offer and Conclusion of Contract; Content of Contract

1. Purchase orders are always placed by us in writing; purchase orders placed orally or by telephone shall require written confirmation. Before accepting the purchase order, the Supplier shall notify us of any obvious errors (e.g. typing and calculation errors) and any incompleteness of the purchase order, including the order documents, of which it is aware for the purpose of correction or completion. If the Supplier is in any doubt as to our purchase order, it shall be obliged to clarify this with us prior to the conclusion of the contract.
2. Our purchase order is a binding offer. The Supplier may, at its option, accept this offer within five working days by sending us a written order confirmation or by delivering/providing the Goods/Services ordered.
3. Prior to the conclusion of a contract, the Supplier is obliged to inform us in writing if
 - the Goods to be supplied are not suitable for the use agreed with the Supplier or known or recognisable to the Supplier,
 - the use of the Goods may involve special risks or unusual consequences of damage of which the Supplier is or ought to be aware, and
 - the resale of the Goods by us at home and/or abroad may infringe patents, licences or other intellectual property rights of third parties.

The same applies where a Service is to be provided rather than Goods.

4. All agreements made between us and the Supplier at the time of entering into the contract for the purpose of performing the contract are set out in writing in the contract and these GTCP.
5. We reserve all property rights and copyrights in the order information we provide to the Supplier (including, for example, illustrations, drawings, calculations, samples, models and other documents, as well as all other information of an embodied or non-embodied nature). This applies in particular to such information marked "confidential". Such information shall be used exclusively for the manufacture of the Goods ordered by us; embodied information shall be returned to us unsolicited upon completion of purchase order processing. The Supplier shall require our express written consent before disclosing such information to third parties.

Section 3 Prices, Conditions of Payment, Delayed Payment

1. The prices quoted in the purchase order are binding. They may not be increased for any reason whatsoever without our written consent. The price quoted is a net price so that the applicable VAT is shown separately.
2. The agreed price includes the cost of delivery, transport and appropriate packaging for transport. If Services are ordered, travel time etc. is also included in the price. Any packaging shall be taken back by the Supplier at its own expense and disposed of at its own expense. At the request of the Supplier, we will dispose of the packaging material at the Supplier's expense.
3. The agreed price shall be payable within 30 calendar days of full delivery and performance (including any agreed acceptance) and receipt of a proper invoice. The invoice must state the Supplier number, the Supplier's VAT identification number, and the number and date of the purchase order. In the case of the supply of Goods, the invoice shall also state the place of unloading, the number and date of the delivery note and the quantity of Goods invoiced; in the case of the supply of Services, the invoice shall be accompanied, where applicable, by a copy of the time sheet(s). If we make payment within 14 calendar days after the relevant date of the beginning of the due date in accordance with the first sentence of Section 3 No. 3 of these GTCP, the Supplier shall grant us a 2% discount on the gross amount stated in the invoice. In the case of bank transfers, payment shall be deemed to have been made on time if the transfer is made before the expiry of the payment deadline; receipt of payment by the Supplier shall not be decisive.
4. We shall not be liable for interest on late payments under Section 353 of the Commercial Code [*Handelsgesetzbuch – HGB*].
5. In all other respects, the statutory delayed payment provisions shall apply.

Section 4 Offsetting, Right of Retention, Non-Assignment Clause

1. The Supplier shall have no rights of set-off or retention unless its counterclaims have been finally determined by a court of law, are undisputed or recognised by us, or are based on the same contractual relationship.
2. Subject to Section 354a HGB, the Supplier may not assign its claims against us or encumber them with the rights of third parties without our prior written consent.
3. We are entitled to rights of set-off and retention, and the plea of non-performance of the contract to the extent permitted by law. In particular, we are entitled to withhold due payments, as long as we are still entitled to claims against the Supplier arising from incomplete or defective delivery/performance. Payments shall be made subject to reservation and shall not affect the Supplier's warranty obligations.

Section 5 Delivery, Delivery Periods, Transfer of Risk, Consequences of Delay

1. If no other delivery modality has been agreed, the Goods shall be delivered DDP Incoterms 2020 to the delivery address specified in our purchase order or, if no delivery address is specified in the purchase order, to DDP Gewerbestraße 2, 32339 Espelkamp, Germany. If, notwithstanding the first sentence of Section 5 No. 1 of these GTCP, “free domicile”, “free building site” or similar has been agreed with the Supplier as the delivery modality, this clause shall be understood to mean that the delivery is not complete until the Goods have arrived at the destination, unless clearly interpreted otherwise. If delivery “ex works” has been agreed, the Supplier must make the Goods available in good time, taking into account the usual time for loading and shipping. The same applies to the provision of services.
2. Agreed dates and periods are binding. If the period of delivery/performance is not specified in the purchase order and has not been agreed otherwise, the delivery/performance by the Supplier must be made immediately in accordance with Section 271 BGB, unless the circumstances indicate otherwise.
3. If, in the case of a transaction for delivery by a fixed date, the delivery date is exceeded contrary to the second sentence of Section 376(1) HGB, we do not need to notify the Supplier that we insist on performance in order to maintain our claim to performance. The continued existence of our claim to performance shall not affect any unrestricted right to withdraw to which we are entitled under the statutory provisions.
4. The Supplier is obliged to hand over and assign to us free of charge all documents relating to the Goods or Services (e.g. warranty certificates, test certificates, instructions for use, installation instructions, work's test certificates, data sheets and safety data sheets) at the latest on delivery of the Goods or provision of its Service.
5. If the Service consists of the preparation of plans/drawings etc. (hereinafter referred to as “Work Results”), we shall be entitled to free (as this has been taken into account in the agreement of the total remuneration), irrevocable, sub-licensable and transferable rights of use to the Work Results in all known and unknown types of use, which are unlimited in terms of content, space and time. We shall also be entitled to use, reproduce, distribute, modify and further develop the Work Results in whole or in part and to have the aforementioned activities carried out by third parties.
6. Work Results that the Supplier has produced individually for us or has had produced by third parties (“Individual Work Results”) shall be transferred to us as part of the provision of the Service without further conditions and without additional remuneration. If their transfer is not legally possible, the Contractor shall grant the Client an exclusive, transferable, sub-licensable, irrevocable and free right of use, unlimited in terms of time, space and content.
7. If the performance/delivery to be provided (also) includes software, the source code shall also be handed over to us, unless otherwise agreed.
8. The Supplier shall only be entitled to make partial deliveries with our express consent. In the case of partial deliveries, the remaining quantity shall be indicated on the delivery note. The Supplier shall only be entitled to make early deliveries with our express consent.
9. If delivery to our customer is made by the Supplier by drop shipment, we reserve the right to provide the Supplier with special process instructions prior to processing. In addition, the Supplier must notify us in writing (enclosing delivery note and invoice) immediately after Goods issue.
10. The risk shall pass upon delivery/performance. Where it is agreed that acceptance is required that goes beyond the acceptance under Section 433(2) BGB, this shall be decisive for the transfer of risk, notwithstanding the first sentence of Section 3(7) of these GTCP. In all other respects, the

statutory provisions of the service contract law shall apply mutatis mutandis in the event of such agreed acceptance.

11. The Supplier shall notify us without undue delay if it is foreseeable that the agreed delivery date or period cannot be met. Such notification shall not release the Supplier from its obligation to deliver/perform on time and shall not affect our rights arising from delayed delivery/performance.
12. Without prejudice to any other notification obligations, the Supplier shall notify us in writing of the delivery or provision of Services with a reasonable lead time. If the Supplier is required to provide the Services or be present at one of our sites, the Supplier and its employees and agents shall observe the contents of our "Instruction for External Companies", which is attached to the purchase order. If the Instruction is not attached to the purchase order, the Supplier must request it from its contact in our Purchasing Department.
13. If the day on which the delivery/performance is to be made at the latest can be determined on the basis of the contract, the Supplier shall be in default at the end of that day if the delivery/performance has not been made by that time, without a reminder being required on our part. The other statutory provisions of Section 286(2) Nos. 2 to 4 BGB shall remain unaffected, with the proviso that a reminder is not required for default.
14. In the event of a delay in delivery, we shall be entitled, without limitation, to the statutory rights, including the right to rescind the contract and to claim damages in lieu of performance, after a reasonable grace period has elapsed, unless a grace period is dispensable under these GTCP and/or statutory provisions. The provisions of Section 5 No. 15 of these GTCP remain unaffected. The Supplier is aware that even short-term delays in delivery may result in production losses for us. As we supply our customers on a just-in-time basis, even minor delays in delivery may give rise to substantial claims for damages and/or contractual penalties by our customers, for which the Supplier shall ultimately be liable by way of recourse. This provision applies mutatis mutandis to the provision of Services.
15. If the Supplier is in default, we shall be entitled, in addition to any other statutory rights, to claim liquidated damages for our loss caused by the delay at the rate of 0.5% of the net purchase price of the Goods not delivered or delivered late per calendar week or part thereof, but not more than a total of 5% of the net purchase price of the Goods not delivered or delivered late. We reserve the right to prove that we have suffered a higher loss. The Supplier reserves the right to prove that no damage or only minor damage has been caused. The liquidated damages pursuant to Section 5 No. 15 of these GTCP shall be set off against the claim for damages for delay.
16. Our claim to performance shall not expire until the Supplier has fully satisfied our damage claims, which we may at our option claim in lieu of full performance.
17. We shall be entitled to refuse acceptance of the Goods in accordance with Section 433(2) BGB to the extent that and for as long as impediments arise for which we are not responsible. If we are in default of acceptance, the Supplier shall not be entitled to claim any liquidated damages from us. The same shall apply in the event of the provision of Services.

Section 6 Outgoing Inspection by the Supplier; Obligation to Notify

1. In order to avoid, as far as possible, consequential damage resulting from the delivery of defective Goods, the Supplier is obliged to inspect the Goods prior to delivery for defects that are recognisable in a proper inspection. The Supplier is obliged to record the result of this outgoing inspection in writing and to send it to us on request.
The same shall apply if the Supplier uses materials procured by it in the course of providing the service.
2. If, after delivery/performance, the Supplier discovers that the Goods/Services are defective, it shall be obliged to notify us of this defect in writing without delay. This shall also apply if the defect

does not give rise to a warning based on tort and/or product liability law or a recall based on tort and/or product liability law.

Section 7 Material Defects and Defects of Title

1. Irrespective of how a material defect is defined by law, the Goods/Services are defective if, at the time of transfer of risk/acceptance, they
 - deviate from the agreed and/or customary quality;
 - deviate from the agreed and/or known and/or recognisable and/or customary suitability for use;
 - do not comply with statutory and/or other legal requirements that must be complied with if the Goods are resold in Germany;
 - the Goods/Services deviate from the recognised rules of technology, the applicable rules for product safety (in particular those of the Product Safety Act [*Produktsicherheitsgesetz* – ProdSG]), the applicable DIN standards and/or applicable EU standards and/or were not manufactured in accordance with these; and/or
 - are defective within the meaning of the Product Liability Act [*Produkthaftungsgesetz* – ProdhaftG].
2. The Supplier shall comply with the latest state of science and technology, the agreed specifications, information on data sheets, product descriptions and requirements of retention samples and other specified technical data for its delivery. It shall establish and demonstrate an appropriate quality management system.
3. The Goods are defective in title if they do not meet the requirements of Section 12 No. 1 of these GTCP at the time of the transfer of risk. Otherwise, defects in title are governed by Section 435 BGB.
4. In the case of the provision of services, the relevant statutory provisions shall apply to the question of defectiveness, e.g. in the case of contracts for work and services, the provisions of the law on contracts for work and services.

Section 8 Inspection for Defects, Liability for Defects

1. The statutory provisions shall apply to the commercial obligation to inspect and give notice of defects with the following proviso: We shall be obliged to inspect the Goods within a reasonable period of time for typical deviations of an actual nature in the type, quantity, quality and packaging of the Goods delivered. The method of inspection shall be limited to our usual method of inspection. It is not necessary to involve third parties, nor is it necessary to examine the chemical composition. The complaint shall be deemed to have been made in good time if it is received by the Supplier within ten working days of receipt of the Goods or, in the case of hidden defects, of their discovery. The complaint may be made orally. A complaint by us is not required if the Supplier knew or should have known of the defect, in particular as a result of its outgoing inspection in accordance with Section 6(1) of these GTCP.
2. Our rights in the event of material defects and defects of title of the Goods delivered or Services provided shall be governed by the statutory provisions, unless otherwise provided in these GTCP; in any event, we shall be entitled, at our option, to demand that the Supplier remedy the defect or deliver a new item if the law governing contracts for sale is applicable. If the law on contracts for work and services applies, the rights in respect of defects arise from Sections 634 et seq. BGB. If the Supplier fails to comply with its obligation to remedy the defect within a reasonable period set by us, we shall be entitled to remedy the defect ourselves and to demand reimbursement of the necessary expenses and an appropriate advance payment from the Supplier. We expressly reserve the right to rescind the contract, reduce the purchase price and claim damages, in particular damages in lieu of performance.

3. No notice of the period of grace for subsequent performance shall be required if the Supplier seriously and finally refuses the delivery/performance or if there are special circumstances which, after weighing the interests of both parties, justify the immediate assertion of the claim for damages.
4. No notice of the period of grace shall be required prior to rescission if
 - the Supplier seriously and finally refuses the delivery/performance, or
 - the Supplier fails to make the delivery/performance by a date or within a period specified in the contract, although we have notified the Supplier prior to the conclusion of the contract or due to other circumstances accompanying the conclusion of the contract that the timely delivery/performance is essential for us, or
 - in the event of a delivery/performance not made in accordance with the contract, there are special circumstances which, after weighing up the interests of both parties, justify immediate rescission.
5. The costs incurred for the purpose of inspection and subsequent performance shall be borne by the Supplier even if it transpires that there was in fact no defect. Our liability for damages in the event of unjustified requests for remedy of defects shall remain unaffected. However, we shall only be liable in this respect if we have recognised that there is no defect or have not recognised that there is no defect due to gross negligence, but have nevertheless demanded subsequent performance.
6. If the Supplier is an intermediary in respect of the Goods in question, it shall not be exonerated under the second sentence of Section 280(1) BGB if it recognised or could have recognised the defect on the basis of its obligation to inspect the Goods in accordance with Section 377 HGB vis-à-vis its supplier, but nevertheless delivered the Goods to us.

Section 9 Limitation Period

1. The Supplier's claims against us shall be subject to the statutory period of limitation.
2. Our claims against the Supplier shall be subject to the statutory period of limitation, unless otherwise stipulated below in Section 9 No. 3 to No. 5 of these GTCP. In all cases, even if this is not mentioned separately below, the special provision according to Section 445b BGB (Limitation of Recourse Claims) shall remain unaffected.
3. Notwithstanding Section 438(1) No. 3 BGB, the limitation period for warranty claims arising from material defects in the Goods regulated therein shall be three (3) years from the transfer of risk. Where it is agreed that acceptance is required that goes beyond the acceptance under Section 433(2) BGB, the limitation period shall only commence with the acceptance.
In the case of the provision of services, the relevant statutory provisions shall apply with regard to the question of the limitation period for claims for defects, e.g. in the case of contracts for work and services, the provisions of the law on contracts for work and services.
4. Notwithstanding Section 438(1) No. 3 BGB, the limitation period for warranty claims arising from defects in title in Goods shall be five (5) years; the statutory limitation period for claims in rem of third parties pursuant to Section 438(1) No. 1 BGB shall, however, remain unaffected. Notwithstanding the first sentence of Section 9 No. 4 of these GTCP, claims arising from defects of title shall in no case become statute-barred as long as the third party can still assert the right against us, in particular because the limitation period has not expired.
5. The limitation periods of the law on sales, including the foregoing extensions, shall apply to the statutory extent to all contractual claims for defects that may arise from the purchase of goods. Insofar as we are also entitled to non-contractual claims for damages due to a defect, the regular

statutory limitation period according to Sections 195, 199 BGB shall apply, unless the application of the limitation periods of the law on sales, including the foregoing extensions, results in a longer limitation period in the individual case. The same shall apply in the event of the provision of Services.

Section 10 Recourse Against the Supplier

We shall have unrestricted entitlement to our rights of recourse pursuant to Section 445a BGB (our recourse against the Supplier in the event that we have to bear expenses in connection with subsequent performance in relation to our customers) and Section 478 BGB (special provision for the recourse of the entrepreneur in the case of the purchase of consumer goods), in addition to our claims for defects. In particular, we shall be entitled to request from the Supplier the exact type of subsequent performance (rework or replacement) that we owe to our customer in the individual case. Our statutory right of choice (Section 439(1) BGB) shall not be restricted by this.

Section 11 Product Liability, Indemnity, Liability Insurance Cover

1. To the extent that the Supplier is responsible for damage to a product and/or personal injury, the Supplier shall indemnify us on first demand against claims for damages by third parties to the extent that the cause lies within the Supplier's sphere of control and organisation and the Supplier itself is liable vis-à-vis third parties.
2. Within the scope of its liability for cases of damage within the meaning of Section 11 No. 1 of these GTCP, the Supplier shall also be required to reimburse any expenses arising from or in connection with a product recall carried out by us. As far as practicable and reasonable, we shall inform the Supplier of the content and scope of the recall measures to be carried out and give it the opportunity to comment. Our other statutory claims shall remain unaffected.
3. The Supplier undertakes to maintain product liability insurance with cover of at least EUR ten (10) million per personal injury/property damage (lump sum). However, this shall not limit the Supplier's liability for damages.

Section 12 Property Rights

1. The Supplier shall deliver/provide the Goods/Services free from third-party rights. In particular, no patents, licences or other intellectual property rights of third parties may be infringed worldwide by the delivery and/or use of the delivery items or Services.
2. If claims are asserted against us by third parties for infringement of third-party rights in accordance with Section 12 No. 1 of these GTCP, the Supplier shall indemnify us against these claims without waiving our further claims for damages. The Supplier's indemnity obligation relates to all expenses incurred by us from or in connection with the claim by a third party.
3. This obligation of the Supplier to indemnify and hold us harmless shall not apply if the deliveries were made exclusively on the basis of our models, illustrations, drawings, plans or other documents and the Supplier does not know or need not have known that the manufacture of the Goods or the provision of the Service on the basis of our models, illustrations, drawings, plans and/or other documents constitutes an infringement of intellectual property rights.

Section 13 Our Liability to the Supplier for Damages

1. We shall only be liable for damage suffered by the Supplier if the damage

- a. was caused by a culpable breach of an obligation, the fulfilment of which is essential for the proper performance of the contract and on the observance of which the Supplier may regularly rely (material contractual obligation), or
 - b. is attributable to a grossly negligent or intentional breach of duty.
2. Insofar as we are liable for the breach of a material contractual obligation pursuant to Section 13 No. 1 of these GTCP, our liability for damages shall be limited to the foreseeable, typically occurring damage at the time of conclusion of the contract.
3. The foregoing limitations of liability in Section 13 No. 1 and No. 2 of these GTCP shall not apply to liability for damages resulting from culpable injury to life, body or health or for damages caused by gross negligence or intentional breach of duty.

Section 14 Materials Provided

1. If we provide parts and/or other materials to the Supplier, the Supplier shall be obliged to check the parts and/or other materials provided by us for their suitability, to handle them properly and to store them temporarily. Any combination, processing and blending of the parts and materials shall be carried out on our behalf with the consequence that we shall acquire co-ownership of the new item in the ratio of the value of our item to the other items at the time of combination, processing or blending.
2. All tools, devices, models, parts and other materials which we make available to the Supplier or which are manufactured for the purposes of the contract and which are separately invoiced to us by the Supplier shall remain or become our property. They shall be marked by the Supplier as our property, stored carefully, insured at the Supplier's expense at replacement value against fire, water damage and theft and used only for the purposes of the contract.

Section 15 Maintenance of Secrecy

The Supplier is obliged to keep confidential all written and oral information which we disclose to it in connection with this contract and/or which becomes known to it in any other way. The confidentiality requirement shall also apply in particular to the order documents referred to in Section 2 (5) of these GCSP to the extent that they are expressly marked as confidential or similar or are reasonably to be regarded as confidential on the basis of their content. The Supplier is prohibited from subjecting our products or objects to reverse engineering by observation, examination, disassembly, testing or similar processes and from obtaining, using or imitating the confidential information contained therein (reverse engineering). The prohibition on reverse engineering does not apply if the Supplier can prove that the products or objects are publicly available.

This confidentiality requirement shall not apply if the Supplier proves that the information to be kept confidential was already known to it prior to disclosure by us or if such information becomes generally known during the term of the contract without this being caused by a breach of contract by the Supplier.

Section 16 Retention of Title by the Supplier for the Delivery of Goods

1. We become the owner of the Goods on delivery.
2. If, however, the transfer of ownership of the Goods by the Supplier to us is subject to full payment of the purchase price, notwithstanding Section 16 No. 1 of these GTCP, the retention of title shall expire at the latest upon payment of the purchase price of the Goods delivered and the retention of title shall only have the effect of a simple retention of title. In this case, however, we shall be entitled to resell the goods in the normal course of business even before payment of the purchase price; we shall assign the claims arising from the resale, which we shall remain entitled to collect,

to the Supplier, who hereby accepts the assignment. We are also entitled to process, blend or combine the Goods with other objects before payment of the purchase price.

3. All other forms of retention of title are excluded, in particular the extended and assigned retention of title and the retention of title extended to further processing.

Section 17 Place of Performance, Choice of Law and Place of Jurisdiction

1. The place of delivery shall be as set out in Section 5 No. 1 of these GTCP. The place of payment and performance for all other obligations arising from the contract with the Supplier, including subsequent performance and the return of Goods as a result of withdrawal, shall be 32339 Espelkamp, Germany, unless otherwise stated in the purchase order.
2. These GTCP and the contractual relationship between us and the Supplier shall be governed by the laws of the Federal Republic of Germany to the exclusion of the United Nations Convention on Contracts for the International Sale of Goods.
3. If the Supplier is a merchant within the meaning of the German Commercial Code, a legal entity under public law or a special fund under public law, the exclusive place of jurisdiction for all disputes arising directly or indirectly from the contractual relationship shall be our registered office in 32339 Espelkamp, Germany. In all cases, however, we shall also be entitled to bring an action at the Supplier's general place of jurisdiction. Overriding statutory provisions, in particular those relating to exclusive jurisdiction, shall remain unaffected.

Section 18 Data Protection

1. We attach great importance to data protection compliance in accordance with the applicable provisions of the General Data Protection Regulation [GDPR] and the Federal Data Protection Act [*Bundesdatenschutzgesetz* – BDSG]. All employees are instructed in accordance with legal requirements and are obliged to maintain confidentiality when processing personal data. The parties are obliged to process personal data in compliance with the statutory provisions.
2. Personal data is collected for the purpose of fulfilling and initiating the contract. This is usually the name, address, telephone number and email address of our contact at the Supplier.
3. Personal data will be processed in accordance with the purpose limitation principle (performance of the contract), i.e. only for the purpose for which it was collected by the Supplier, and its confidentiality and integrity will be protected by technical and organisational measures, in particular against unauthorised access. After termination of the relevant contractual relationship and taking into account the retention periods (statutory, e.g. commercial and tax law archiving obligations, contractual, e.g. due to warranty claims), the stored data will be deleted.
4. Personal data will only be disclosed to third parties for purposes other than the performance or initiation of a contract if we are legally entitled to do so or if the data subject has expressly consented.
5. The data subject has the right to access the personal data stored about them and to have it erased, rectified or transferred. Where the processing of the data is based on consent, the data subject shall have the right to withdraw such consent with effect for the future. If the processing of the data is based on a legitimate interest on our part, the data subject may object to further processing. The data subject may also lodge a complaint with the competent supervisory authority.

Section 19 Other Matters

1. By accepting our purchase order (see Section 2 No. 2 of these GTCP), the Supplier undertakes to provide us with all requested information (including any evidence) on the subject of “sustainability” within a reasonable period of time (but no later than six weeks after receipt of the request) upon our request, even if it is not obliged to provide information under the statutory provisions directly applicable to it.
2. If any provision of these GTCP is or becomes invalid in whole or in part, the validity of the remaining provisions shall not be affected.
3. Neither a handwritten signature nor an electronic signature is required to satisfy the written form requirement. Notices sent by fax or email shall satisfy the written form requirement.

Espelkamp and Adorf/Germany, August 2024